

Opinion of the Court

Judge Fairchild dissented in part. He agreed with the District Court that Fitzsimmons was entitled only to qualified immunity for his press statements. He noted that the majority had failed to examine the particular function that Fitzsimmons was performing, and concluded that conducting a press conference was not among “the functions that entitle judges and prosecutors in the judicial branch to absolute immunity.” *Id.*, at 1246 (opinion dissenting in part and concurring in part). Responding directly to the majority’s reasoning, he wrote:

“It is true that procedures afforded in our system of justice give a defendant a good chance to avoid such results of prejudicial publicity as excessive bail, difficulty or inability of selecting an impartial jury, and the like. These procedures reduce the cost of impropriety by a prosecutor, but I do not find that the courts have recognized their availability as a sufficient reason for conferring immunity.” *Ibid.*

We granted Buckley’s petition for certiorari, vacated the judgment, and remanded the case for further proceedings in light of our intervening decision in *Burns v. Reed*, 500 U. S. 478 (1991). 502 U. S. 801 (1991). On remand, the same panel, again divided, reaffirmed its initial decision, with one modification not relevant here. 952 F. 2d 965 (CA7 1992) (*per curiam*). The Court of Appeals held that “[n]othing in *Burns* undermine[d]” its initial holding that prosecutors are absolutely immune for “normal preparatory steps”; unlike the activities at issue in *Burns*, “[t]alking with (willing) experts is trial preparation.” 952 F. 2d, at 966–967. In similar fashion, the court adhered to its conclusion that Fitzsimmons was entitled to absolute immunity for conducting the press conference. The court recognized that the press conference bore some similarities to the conduct in *Burns* (advising the police as to the propriety of an arrest). It did not take place in court, and it was not part of the prosecutor’s